

1 AN ACT relating to the provision of legal research resources.

2 ***Be it enacted by the General Assembly of the Commonwealth of Kentucky:***

3 ➔Section 1. KRS 172.100 is amended to read as follows:

- 4 (1) A county law library shall be established in each county seat and the fiscal court of
5 each county shall designate sufficient room in the courthouse, in a building of good
6 construction adjacent to the courthouse, in the local public library, or in a building
7 where sessions of the District or Circuit Court are regularly held, or a combination
8 of the foregoing, where such library shall be located and where the books and
9 materials of the library may be safely kept.
- 10 (2) The books of the county law library shall consist of all volumes belonging to the
11 state heretofore sent to the various county officials directed by law to receive such
12 books, and all volumes hereafter sent to such library by the state, and all books now
13 owned or hereafter acquired by the county for the library. **Where required to be**
14 **provided by law, the state may provide electronic access to books and legal**
15 **resources in lieu of bound volumes.** The counties may provide on-line legal
16 resources, **including access and subscriptions to computer-assisted legal research**
17 **facilities and the related infrastructure required to access the internet,** and may
18 acquire books, maps, **computers and related equipment,** or other articles for the
19 library by purchase, gift, or devise.

20 ➔Section 2. KRS 172.200 is amended to read as follows:

- 21 (1) Upon the adoption of this optional plan, in counties other than those containing a
22 city of the first class or consolidated local government, the Circuit Judge shall
23 appoint one (1) member of the county's bar, and the members of the county's bar
24 shall, by majority vote, elect another of their number, which two (2) attorneys shall,
25 with the county attorney of the county, constitute and be designated as "Trustees,
26 County Law Library." In counties containing a city of the first class or consolidated
27 local government, the Chief Circuit Judge shall appoint one (1) member of the

- 1 county's bar; the members of the county's bar shall, by majority vote, elect another
2 of their number; the fiscal court or consolidated local government pursuant to the
3 provisions of KRS 67C.139 shall appoint one (1) member, and one (1) member
4 shall be appointed by the Commonwealth's attorney, which four (4) attorneys shall,
5 with the county attorney of the county, constitute and be designated as "Trustees,
6 County Law Library" or in a county containing a consolidated local
7 government, "Trustees,/.....County Law Library," which shall be a
8 combination of the names of the largest city in existence on the date of the approval
9 of the consolidated local government and the county.
- 10 (2) The trustees shall serve for a term of two (2) years or until their successors are
11 elected or qualified.
- 12 (3) The trustees shall be in charge of the county law library, and they shall make
13 purchases of the various state and federal case reports, textbooks, legal
14 encyclopedia, computers and related equipment, including access and
15 subscriptions to computer-assisted legal research facilities and the related
16 infrastructure required to access the internet, and all other books or equipment
17 usually incident to or customarily found in law libraries, or necessary to the
18 protection of the rights of litigants, and they shall cause same to be properly
19 arranged in the county law library or Court of Justice facilities, directing the ex
20 officio librarian in the exercise of his or her duties. The trustees may also provide
21 on-line legal resources for the use of library patrons.
- 22 (4) The trustees shall exercise their absolute discretion in the purchase of books,
23 pamphlets, periodicals, and other materials and equipment, and in the appointment
24 and compensation of personnel to assist the ex officio librarian in the handling of
25 materials and in the maintenance of the library, but the trustees shall not contract
26 for any such purchases and appointments so as to create an indebtedness greater
27 than the anticipated revenue for the following eighteen (18) months, the anticipated

1 revenue being based upon the preceding eighteen (18) months' revenue, and any
2 indebtedness of the county law library fund shall not be considered in any way an
3 indebtedness of the county, but shall be an indebtedness of the county law library
4 fund only, and all creditors must look only to the county law library fund for
5 satisfaction of their indebtedness.

6 (5) The trustees shall designate one (1) of their number as treasurer and he **or she** shall:

7 **(a)** Be accountable for the receipt, deposit, and disbursement of all sums received
8 for the operation of the county law library; ~~[- He shall]~~

9 **(b)** Be bonded by a corporate bond, the cost of which shall be paid out of the
10 receipts of the library fund; ~~[- He shall]~~

11 **(c)** Deposit all sums received by him **or her** as treasurer in a regular banking
12 depository, and he **or she** shall pay for all purchases made by the trustees by
13 check or draft, keeping a true and accurate account of all sums received and
14 expended; ~~[- by him. He shall]~~

15 **(d)** Annually file a written report with the Circuit Judge of the county showing all
16 sums received ~~[- by him]~~, together with the court from which they were
17 received, and an itemized statement of all expenditures made; **and** ~~[- by him.~~
18 ~~The treasurer shall]~~

19 **(e)** Turn all funds over to his **or her** successor, together with a full inventory of
20 the county law library, and together with a full and complete itemized
21 statement of all outstanding accounts.

22 ➔Section 3. KRS 57.320 is amended to read as follows:

23 **If requested by the Chief Justice, a judge, or the county law librarian,** the state law
24 librarian, under direction of the Supreme Court, ~~may~~ **shall** purchase bound volumes and
25 advance sheets of, **or electronic access to,** the opinions of the Supreme Court and Court
26 of Appeals ~~and furnish them~~ for the use of the Supreme Court, Court of Appeals,
27 ~~a~~ **each** county law library, ~~or~~ **and each judge of** a Circuit **or District** Court.